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ECONOMIC FREEDOM FIGHTERS v SPEAKER, NATIONAL ASSEMBLY AND OTHERS 2016 (3) SA 580 (CC)

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Citation	2016 (3) SA 580 (CC)
Case No	143/15 [2016] ZACC 11
Court	Constitutional Court
Judge	Mogoeng CJ, Moseneke DCJ, Bosielo AJ, Cameron J, Froneman J, Jafta J, Khampepe J, Madlanga J, Mhlantla J, Nkabinde J and Zondo J
Heard	February 9, 2015
Judgment	March 31, 2015
Counsel	<i>W Trengove SC</i> (with <i>D Mpofu SC</i> , <i>T Ngcukaitobi</i> , <i>J Mitchell</i> and <i>N Muvangua</i>) for the Economic Freedom Fighters. <i>Anton Katz SC</i> (with <i>J de Waal</i> , <i>J Bleazard</i> and <i>T Mayosi</i>) for the Democratic Alliance. <i>LG Nkosi-Thomas SC</i> (with <i>GD Ngcangisa</i> and <i>M Musandiwa</i>) for the Speaker of the National Assembly. <i>JJ Gauntlett SC</i> (with <i>KJ Kemp SC</i> , <i>M du Plessis</i> , <i>S Mahabeer</i> and <i>S Pudifin-Jones</i>) for the President. <i>WR Mokhari SC</i> (with <i>H Slingers</i> and <i>M Kgatla</i>) for the Minister of Police. <i>G Marcus SC</i> (with <i>M Stubbs</i>) for the Public Protector. <i>C Steinberg</i> (with <i>L Kelly</i>) for Corruption Watch.

F**Flynote : Sleutelwoorde**

Constitutional law — Chapter 9 institutions — Public Protector — Powers — To take appropriate remedial action — Legal status and effect — Constitution, ss 182(1)(c).

Constitutional law — Separation of powers — Between legislature and judiciary — Legislature's obligation to scrutinise and oversee executive action and to hold it accountable — Outside parameters of judicial authority to prescribe to legislature how to discharge such obligation — Constitution, ss 42(3) and 55(2).

Constitutional law — State President — Obligations — To uphold, defend and respect Constitution, and to assist and protect ch 9 institutions — Non-compliance with binding remedial action taken against President by Public Protector inconsistent with such obligations — Constitution, ss 83(b), 181(3) and 182(1)(c).

Constitutional law — Parliament — Obligations — To scrutinise and oversee executive action, to hold executive accountable, and to assist and protect ch 9 institutions — Not ensuring compliance with binding remedial action

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taken against President by Public Protector inconsistent with such duties — Constitution, ss 42(3), 55(2), 181(3) and 182(1)(c).

Constitutional practice — Courts — Constitutional Court — Jurisdiction — Exclusive jurisdiction to decide whether Parliament or President failed to fulfil constitutional obligation — Nature of constitutional obligation activating exclusive jurisdiction — Not obligation shared with other state organs but actor-specific — Whether President's failure to comply with remedial action taken by Public Protector against him, activating court's exclusive jurisdiction — Whether National Assembly's failure to take action on Public Protector's report, activating court's exclusive jurisdiction — Constitution, ss 167(4)(e), 42(3), 55(2), 83(b), 181(3) and 182(c).

Headnote : Kopnota

This case concerned the constitutional obligations of the President and those of the National Assembly (the NA) to implement remedial action taken against the President by the Public Protector acting in terms of s 182(1)(c) of the Constitution.

The Public Protector's report on her investigation into the costs of the Department of Public Works' security upgrade of the President's private residence found that the President and his family were unduly enriched by non-security features included in the upgrade. The Public Protector ordered that the President repay a to-be-determined percentage of the undue enrichment; that he reprimand the ministers involved in the project; and that he report to the NA with his 'comments and actions on this report' within 14 days.

The President complied with the 14-day deadline but the remedial action was not otherwise implemented. The NA, having conducted its own investigation of the matter, adopted a resolution absolving the President from all liability. Dissatisfied with this outcome, the Economic Freedom Fighters (the EFF), a political party, applied directly to the Constitutional Court for confirmation of the legally binding effect of the Public Protector's remedial action; for an order directing the President to comply with it; and for an order declaring that both the President and the NA had breached their constitutional obligations. * The EFF based their application for direct access on the premise that the non-implementation of the Public Protector's remedial action constituted a failure by 'Parliament or the President . . . to fulfil a constitutional obligation', which under s 167(4)(e) of the Constitution vested the Constitutional Court with exclusive jurisdiction. ¶

Held, as to the application for direct access

Section 167(4)(e) had to be given a narrow meaning so as not to unduly deprive other courts of their constitutional jurisdiction. The allegedly breached obligation had to be one that was specifically imposed on the President or Parliament; an obligation shared with other organs of state would fail the s 167(4)(e) test. For the EFF to succeed, it would have to rely on a breach of a constitutional obligation — resting on the President as an individual and on the NA as an institution — that had a demonstrable and inextricable link to the need to ensure compliance with the remedial action taken by the Public Protector. (Paragraphs [17] – [18] and [23] at 590F/G – 591F and 593F – 594A.)

As to exclusive jurisdiction in relation to the application against the President: Section 83(b) of the Constitution obliged him to 'uphold, defend and respect' the Constitution. But to meet the s 167(4)(e) requirements,

A conduct showing that the President personally failed to fulfil a constitutional obligation expressly imposed on him had to be invoked in order to establish the essential link between the President's more general s 83(b) obligations and a particular right or definite obligation. In the present case the link would be provided by the Public Protector's exercise of her s 182(1)(c) power to take remedial action and the President's disregard of B it. Hence the conditions for the exercise of the court's exclusive jurisdiction in relation to the President's conduct were met. (Paragraphs [33] – [35] and [39] – [40] at 597B – 598B and 598H – 599B.)

As to exclusive jurisdiction in relation to the application against the NA: Section 55(2) of the Constitution obliged the NA to hold the executive accountable and to maintain oversight over it, but without indicating how C this duty was to be discharged. To determine whether the NA had fulfilled its obligations in the this regard would entail the resolution of crucial political issues, an exercise trenching on sensitive areas of the separation of powers. This was a powerful indication that the court was entitled to exercise its exclusive jurisdiction in the present matter. In addition the NA — like the President — had actor-specific constitutional obligations D imposed on it by s 182(1)(b) and (c) of the Constitution. The Public Protector's power 'to report on that conduct' meant reporting primarily to the NA, which was then obliged to take action under ss 42(3) and 55(2) of the Constitution — ie by overseeing, scrutinising and holding executive action accountable. Hence the EFF also met the requirements for the court to exercise exclusive jurisdiction in relation to the conduct of the NA. E (Paragraphs [43] – [45] at 599G – 600F.)

Held, as to the legal effect of the Public Protector's remedial power

This power was sourced in the Constitution. Sections 181 and 182 of the Constitution gave reliable pointers to the legal status and effect of the Public Protector's remedial power. The obligation (in s 181(3)) of other organs of state to assist and protect her so as to ensure her dignity and effectiveness, F was relevant to the enforcement of her remedial power — she would arguably lack dignity and be ineffective if her directives could be ignored. A remedial power that was so inconsequential that those against whom it was exercised could ignore or second-guess it, was irreconcilable with the need for an independent, impartial and dignified Public Protector. 'Appropriate' action meant action suitable to redress or undo the prejudice, impropriety, G unlawful enrichment or corruption in question. While it might sometimes be a mere recommendation, it would often have to be binding to effectively address the complaint. It was inconsistent with ss 181 and 182 to conclude that the Public Protector could only make recommendations that could be disregarded if there were a rational basis for doing so. (Paragraphs [64] – [71] at 606D – 609H.)

H When remedial action was binding, compliance was obligatory, whatever reservations the affected party might have about its fairness, appropriateness or lawfulness. It could not be ignored without legal consequences. The constitutional order hinged on the rule of law, which obliged everyone to obey the decisions of those clothed with the legal authority to make them, or else approach the courts to have them set aside. (Paragraphs [73] – [75] at 610D – 611D.)

I Held, as to whether the President acted in breach of constitutional obligations

The remedial action the Public Protector took against the President was binding. It required him to take concrete steps to determine how much he was supposed to pay for the listed non-security features. While the President was entitled to launch a parallel investigation if he doubted the correctness J of the Public Protector's findings, it was only after a court of law had set them aside that it would be open to him to disregard them. Here the Public

Protector's remedial action was second-guessed in a manner that was A contrary to the rule of law. Absent a court challenge to the Public Protector's report, the President had to comply. This substantial disregard for the remedial action taken against him by the Public Protector was inconsistent with his constitutional duties to uphold, defend and respect the Constitution (s 83(b)), and to assist and protect the office of the Public Protector to ensure its independence, impartiality, dignity and effectiveness B (s 181(3)). (Paragraphs [76] – [78],[81] – [83] at 611D – 612C and 612G – 613F.)

Held, as to whether the NA acted in breach of its constitutional obligations

The NA was also entitled to challenge the findings and remedial action of the C Public Protector but, absent a court challenge, it was duty-bound to hold the President accountable by facilitating his compliance. By effectively setting-aside the Public Protector's report, the NA acted contrary to the rule of law by usurping the authority of the judiciary. The NA's conduct was contrary to its constitutional obligations to scrutinise and oversee executive action (s 42(3)); to maintain oversight of the exercise of executive powers by D the President and hold him accountable (s 55(2)(a) and (b)); and to assist and protect the office of the Public Protector to ensure its independence, impartiality, dignity and effectiveness (s 181(3)). (Paragraphs [88], [94], [98] and [104] 614H – 615B, 616H – 617D, 618D – E and 620B – C.)

Held, as to the separation of powers E

Neither s 42(3) nor s 55(2) defined any strictures within which the NA was required to operate in its endeavour to fulfil its obligations. It fell outside the parameters of judicial authority to prescribe to the NA how to scrutinise executive action, what mechanisms to establish and which mandate to give it for the purpose of holding the executive accountable and fulfilling its oversight role of the executive or organs of state in general. The mechanics of how to go about fulfilling these constitutional obligations was a discretionary matter best left to the NA. (Paragraphs [93] at 616D – H.) F

Cases Considered

Annotations

Case law

Democratic Alliance v President of South Africa and Others 2013 (1) SA 248 (CC) (2012 (12) BCLR 1297; [2012] ZACC 24): compared G

Democratic Alliance v South African Broadcasting Corporation Ltd and Others 2015 (1) SA 551 (WCC) ([2014] ZAWCHC 161): criticised

Doctors for Life International v Speaker of the National Assembly and Others 2006 (6) SA 416 (CC) (2006 (12) BCLR 1399; [2006] ZACC 11): applied H

Ex parte Chairperson of the Constitutional Assembly: In re Certification of the Constitution of the Republic of South Africa, 1996 1996 (4) SA 744 (CC) (1996 (10) BCLR 1253; [1996] ZACC 26): applied

Fedsure Life Assurance Ltd and Others v Greater Johannesburg Transitional Metropolitan Council and Others 1999 (1) SA 374 (CC) (1998 (12) BCLR 1458; [1998] ZACC 17): referred to I

Fose v Minister of Safety and Security 1997 (3) SA 786 (CC) (1997 (7) BCLR 851; [1997] ZACC 6): dictum in para [69] applied

Glenister v President of the Republic of South Africa and Others 2011 (3) SA 347 (CC) (2011 (7) BCLR 651; [2011] ZACC 6): referred to

Helen Suzman Foundation v Judicial Service Commission 2015 (2) SA 498 (WCC) ([2014] 4 All SA 395; [2014] ZAWCHC 136): compared J

A *Justice Alliance of South Africa v President of the Republic of South Africa and Others* 2011 (5) SA 388 (CC) (2011 (10) BCLR 1017; [2011] ZACC 23): compared

Mazibuko NO v Sisulu and Others NNO 2013 (6) SA 249 (CC) (2013 (11) BCLR 1297; [2013] ZACC 28): referred to

MEC for Health, Eastern Cape and Another v Kirland Investments (Pty) Ltd t/a Eye & Lazer Institute B 2014 (3) SA 481 (CC) (2014 (5) BCLR 547; [2014] ZACC 6): dictum in para [103] applied

My Vote Counts NPC v Speaker of the National Assembly and Others 2016 (1) SA 132 (CC) (2015 (12) BCLR 1407; [2015] ZACC 31): referred to

Nyathi v MEC for Department of Health, Gauteng and Another 2008 (5) SA 94 (CC) (2008 (9) BCLR 865; [2008] ZACC 8): dictum in para [80] applied

Oriani-Ambrosini v Sisulu, Speaker of the National Assembly 2012 (6) SA 588 (CC) (2013 (1) BCLR 14; [2012] ZACC 27): referred to

Pharmaceutical Manufacturers Association of SA and Another: In re Ex parte President of the Republic of South Africa and Others 2000 (2) SA 674 (CC) (2000 (3) BCLR 241; [2000] ZACC 1): referred to

President of the Republic of South Africa and Another v Hugo 1997 (4) SA 1 (CC) (1997 (1) SACR 567; 1997 (6) BCLR 708; [1997] ZACC 4): dictum in para [65] applied

President of the Republic of South Africa and Others v South African Rugby Football Union and Others 1999 (2) SA 14 (CC) (1999 (2) BCLR 175; [1998] ZACC 9): dictum in para [29] applied

President of the Republic of South Africa and Others v South African Rugby Football Union and Others 1999 (4) SA 147 (CC) (1999 (7) BCLR 725; [1999] ZACC 9): dictum in paras [72] – [73] applied

Rail Commuters Action Group and Others v Transnet Ltd t/a Metrorail and Others 2005 (2) SA 359 (CC) (2005 (4) BCLR 301; [2004] ZACC 20): dictum in paras [106] – [108] applied

South African Broadcasting Corporation Soc Ltd and Others v Democratic Alliance and Others 2016 (2) SA 522 (SCA) ([2015] 4 All SA 719; [2015] ZASCA 156): dictum in para [52] applied

The Public Protector v Mail & Guardian Ltd and Others 2011 (4) SA 420 (SCA) ([2011] ZASCA 108): referred to

Von Abo v President of the Republic of South Africa 2009 (5) SA 345 (CC) (2009 (10) BCLR 1052; [2009] ZACC 15): referred to

Women's Legal Centre Trust v President of the Republic of South Africa and Others 2009 (6) SA 94 (CC) ([2009] ZACC 20): referred to.

Statutes Considered

Statutes

The Constitution of the Republic of South Africa, 1996, ss 42(3), 55(2), 83(b), 167(4)(e), 181(3) and 182(1)(c): see *Juta's Statutes of South Africa 2014/15* vol 5 at 1-32, 1-34, 1-39, 1-50 and 1-53.

Case Information

W Trengove SC (with *D Mpofu SC*, *T Ngcukaitobi*, *J Mitchell* and *N Muvangua*)  for the Economic Freedom Fighters.

Anton Katz SC (with *J de Waal*, *J Bleazard* and *T Mayosi*) for the Democratic Alliance.

LG Nkosi-Thomas SC (with *GD Ngcangisa* and *M Musandiwa*) for the Speaker of the National Assembly.

JJ Gauntlett SC (with *KJ Kemp SC*, *M du Plessis*, *S Mahabeer* and *S Pudifin-Jones*)  for the President.

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WR Mokhari SC (with *H Slingers* and *M Kgatla*) for the Minister of Police. 

G Marcus SC (with *M Stubbs*) for the Public Protector.

C Steinberg (with *L Kelly*) for Corruption Watch.

Applications for the exercise of exclusive jurisdiction and direct access, and declaratory orders. 

Order

1. This court has exclusive jurisdiction to hear the application by the Economic Freedom Fighters.
2. The Democratic Alliance's application for direct access is granted. 
3. The remedial action taken by the Public Protector against President Jacob Gedleyihlekisa Zuma in terms of s 182(1)(c) of the Constitution is binding.
4. The failure by the President to comply with the remedial action taken against him, by the Public Protector in her report of 19 March 2014, is inconsistent with s 83(b) of the Constitution read with  ss 181(3) and 182(1)(c) of the Constitution and is invalid.
5. The National Treasury must determine the reasonable costs of those measures implemented by the Department of Public Works at the President's Nkandla homestead that do not relate to security, namely the visitors' centre, the amphitheatre, the cattle kraal, the chicken run and the swimming pool only. 
6. The National Treasury must determine a reasonable percentage of the costs of those measures which ought to be paid personally by the President.
7. The National Treasury must report back to this court on the outcome of its determination within 60 days of the date of this  order.
8. The President must personally pay the amount determined by the National Treasury in terms of paras 5 and 6 above within 45 days of this court's signification of its approval of the report.
9. The President must reprimand the ministers involved pursuant to para 11.1.3 of the Public Protector's remedial action. 
10. The resolution passed by the National Assembly absolving the President from compliance with the remedial action taken by the Public Protector in terms of s 182(1)(c) of the Constitution is inconsistent with ss 42(3), 55(2)(a) and (b) and 181(3) of the Constitution, is invalid and is set aside. 
11. The President, the Minister of Police and the National Assembly must pay costs of the applications, including the costs of two counsel.

* The Democratic Alliance made a similar application, but conditional on the granting of the EFF's application for direct access. The two applications were heard together.